

		Accordingly, the demurrer to the third cause of action is also SUSTAINED. Re Leave to Amend: On demurrer, a court determines whether the complaint states facts sufficient to constitute a cause of action. If the court sustains the demurrer, it must decide whether to grant leave to amend. Leave to amend should be granted if there is a reasonable possibility that the defect can be cured by amendment. Plaintiff (or here, Cross-Complainant) has the burden of proving that there is a reasonable possibility that the defect can be cured by amendment. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) Given that Cross-Complainants have had multiple opportunities to state a viable claim, and Cross-Complainants have not met their burden of establishing that there is a reasonable possibility that the defects in the SACC can be cured by amendment, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. Moving party to give notice.
13	Ama Investors, LLC vs. Pro Motorcars Inc	<u>Ds' Motion to Tax Costs</u> <u>P's Motion to Strike or Tax Costs</u> As explained below: The court GRANTS Plaintiff AMA INVESTORS, LLC's motion to tax costs in its entirety. The court DENIES Defendants PRO MOTORCARS, INC.'s and Mehrdad Jandarian's motion to tax costs. Legal Standard Plaintiff and Defendants filed competing motions to tax/strike costs. Each claim that it is the prevailing party, that the opposing party is not the prevailing party, and that certain costs items in the memorandum of costs are not recoverable.